

SOLICITATION, OFFER AND AWARD				1. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)		RATING		PAGE OF PAGES 1 25			
2. CONTRACT NO.		3. SOLICITATION NO. N6660426Q0318		4. TYPE OF SOLICITATION [] SEALED BID (IFB) [] NEGOTIATED (RFP)		5. DATE ISSUED 01 May 2026		6. REQUISITION/PURCHASE NO. 1301262782-0001			
7. ISSUED BY NAVAL UNDERSEA WARFARE CENTER MICHAEL NORMAN OUELLETTE, CODE 0221 CONTRACTS DEPARTMENT 1176 HOWELL STREET, BLDG. 1258 NEWPORT RI 02841-1708 TEL: 401-832-5568 FAX:				CODE N66604		8. ADDRESS OFFER TO (If other than Item 7) See Item 7		CODE TEL: FAX:			
NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".											
SOLICITATION											
9. Sealed offers in original and _____ copies for furnishing the supplies or services in the Schedule will be received at the place specified in Item 8, or if handcarried, in the depository located in _____ until _____ local time _____ (Hour) (Date)											
CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision No. 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.											
10. FOR INFORMATION CALL:		A. NAME MICHAEL N OUELLETTE		B. TELEPHONE (Include area code) (NO COLLECT CALLS) (401)-832-5568			C. E-MAIL ADDRESS michael.n.ouellette.civ@us.navy.mil				
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OFFER (Must be fully completed by offeror)											
NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.											
12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the price set opposite each item, delivered at the designated point(s), within the time specified in the schedule.											
13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause No. 52.232-8)											
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):				AMENDMENT NO.		DATE		AMENDMENT NO.		DATE	
15A. NAME AND ADDRESS OF OFFEROR		CODE		FACILITY		16. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)					
15B. TELEPHONE NO (Include area code)		☐		15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.				17. SIGNATURE		18. OFFER DATE	
AWARD (To be completed by Government)											
19. ACCEPTED AS TO ITEMS NUMBERED				20. AMOUNT		21. ACCOUNTING AND APPROPRIATION					
22. AUTHORITY FOR USING OTHER THAN FULL AND OPEN COMPETITION: ☐ 10 U.S.C. 2304(c)() ☐ 41 U.S.C. 253(c)()						23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)		ITEM			
24. ADMINISTERED BY (If other than Item 7)				CODE		25. PAYMENT WILL BE MADE BY				CODE	
26. NAME OF CONTRACTING OFFICER (Type or print) TEL: EMAIL:						27. UNITED STATES OF AMERICA (Signature of Contracting Officer)				28. AWARD DATE	
IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.											

Section A - Solicitation/Contract Form

GENERAL INFORMATION

DISTRIBUTION: FILE, KR, NUWC Code 02, Code 10/E. Gilmore

NUWC DIVNPT PID Number: N66604-26-SIMACQ-NPT-10-0201

NUWC DIVNPT POC: Michael Ouellette; Email: Michael.n.ouellette.civ@us.navy.mil

The purpose of this agreement is to provide water vending services to the Naval Undersea Warfare Center Division, Newport (NUWC DIVNPT) for the benefit of all NUWC DIVNPT employees.

Section B - Supplies or Services and Prices

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	CMWR Water Vending Services FFP Services in Accordance with the Statement of Work FOB: Destination PURCHASE REQUEST NUMBER: 1301262782-0001 PSC CD: R499	1	Job		

NET AMT

Section C - Descriptions and Specifications

STATEMENT OF WORK

NUWCDIVNPT CMWR BEVERAGE VENDING MACHINES PERFORMANCE BASED WORK

1.0 BACK GROUND

The Naval Undersea Warfare Center Division, Newport (NUWCDIVNPT) is the Navy's full-spectrum research, development, test and evaluation, engineering, and fleet support center for submarine warfare systems and many other systems associated with the undersea battle space. NUWCDIVNPT annually has over eight thousand employees, contractors and visitors accessing our site and the NUWCDIVNPT Command Moral Welfare and Recreation (CMWR) require a water pool capability services for the benefit of all at NUWCDIVNPT.

1.1 Place of performance

Work/services will be performed at NUWCDIVNPT and Naval Station Newport (NAVSTA) buildings totaling 81 (Base map to be provided after award)

1.2 Authorized Users

NUWCDIVNPT Water Pool Managers

2.0 SCOPESUPPLIES/SERVICES AND PRICES

Upon receipt of request from a building/floor water pool coordinator in accordance with the Contractor's identified subscription process, Applicable Document 3.2, the contractor shall provide water coolers to not greater than eighty-one (81) buildings (see base map to be provided after award) situated on the NUWCDIVNPT and NAVSTA premises.

3.0 APPLICABLE DOCUMENTS (AD)

	Name:	Dated:
3.1	NUWCDIVNPT SECURITY MANUAL (SECMAN)	10/20/19
3.2	Contractor's process for receipt and fulfillment of subscriptions from water pool managers	TBD (at the time of award)

4.0 Technical Requirements

Upon receipt of request from a building/floor water pool coordinator in accordance with the Contractor's identified subscription process, Applicable Document 3.2, the contractor shall provide water machines located in not greater than eighty-one (81) buildings situated on the NUWCDIVNPT premises. The Contractor shall not provide services unless/until there is an active subscription in an identified area (bldg and floor).

The contractor agrees to remit to the NUWCDIVNPT's Civilian Morale Welfare and Recreation Food Services Board (CMWR/FSB) a flat fixed percentage of: [% TO BE FILLED IN UPON AWARD] percent of gross sales per month in exchange for providing water dispensing machines to NUWCDIVNPT. For the purpose of this contract, gross sales are defined as the total amount of money paid by the water pool managers in accordance with AD 3.2. The gross sales amounts shall not be reduced or adjusted due to any taxes, duties, direct or indirect expenses, increases in the cost of supplies, increases in the cost of vending products, or any other increase of any operating expenses the contractor may incur during the term of the contract.

For purposes of this contract "water dispensing machine" refers to machines that dispense non-bottled water.

The contractor shall make payments within 14 days of drop off. Payments shall be directly deposited into a bank account controlled by the CMWR (details to provide upon award). Deposits shall be made no later than the last day of the third month of the contract, and every three months thereafter. The contractor shall send a separate letter to the CMWR on the same date as the payment is made, indicating date and amount of the deposit. Regardless of when the water dispensing machines are installed by the contractor, the amount is due to CMWR within 14 days of machine and/or bottle drop off. Failure to make a payment will constitute a material breach and can be grounds for immediate contract termination.

4.1 SPECIFICATION

- 4.1.1 Upon receipt of request from a building/floor water pool coordinator in accordance with the Contractor's identified subscription process, Applicable Document 3.2, furnish and install water dispensing machines on the NUWCDIVNPT in the locations agreed upon with the water pool managers within the areas identified in Section

With the exception of two locations, all sites are either on the first floor or accessible by elevator. The two exceptions are on the second floor of their respective buildings. The vend price for a 5-gallon jugs of water shall be in line with the commercial standard market pricing given to another entity of similar size and scope as the active water pool manager supported areas within NUWCDIVNPT at any given time.

- 4.1.2 NUWCDIVNPT's CMWR shall have the right to require the contractor to relocate any of the said water machines to a different area or building. If relocation is required, it is the contractor's responsibility to relocate the water dispensing machines at their own cost and expense within fifteen (15) days of formal notification.

- 4.1.3 The contractor shall take payment and track subscriptions in accordance with AD 3.2.

- 4.1.4 The contractor shall obtain all permits; give all necessary notices; pay all license fees; comply with all municipal, district, state and federal laws, rules, ordinances, regulations, and any publications by the Department of War relating to public health or business carried out under this Contract.

The contractor shall assume complete and sole liability for all federal, state and local taxes applicable to the property, income and transactions or this contract. The contractor is responsible for all trade fixtures, tools or the trade, equipment and any other such items or supplies required for performance of this contract. None of the responsibilities or expenses will in any way reduce the monthly remittance agreed to in the contract.

- 4.1.5 The contractor shall provide water dispensing machines that are equipped with hot/cold options and provide thermal overload protection. In addition, the contractor shall ensure that all drink machines are firmly anchored or secured to the floor or wall at the time of installation. An industry standard stabilizing bracket shall be used to assure that the machine is secured, preventing water dispensing machine tip overs due to misuse, abuse or acts of God. Safety decals shall be prominently displayed on the machine warning of hazards of tipping or rocking the machine. The contractor shall ensure that all water dispensing machines meet all Federal, state, local, Navy and DOD fire and safety guidelines.

4.2 DELIVERIES OR PERFORMANCE

- 4.2.1 The contractor shall furnish a sufficient number of trained employees for the efficient performance of this contract. The vendor personnel shall meet security standards in accordance with AD 3.1 and all applicable regulations, and shall obtain installation access, passes and permits and security clearances as applicable.

- 4.2.2 The contractor shall not employ any person for work on this contract if such employee is identified to the Contractor by the Contracting Officer as a potential threat to the health, safety, security, general wellbeing or operational mission of the Government installation and its population. The contractor shall remove from the performance of this contract at the request of the Contracting Officer, any agent or employee of the contractor if, in the opinion of the Contracting Officer or their authorized representative, the conduct of such person, while on or about the premises covered by this contract, in any way interferes with the proper order and discipline of the applicable military

installations. This identification will not excuse the Contractor from performing the contract requirements.

4.3 MAINTENANCE OF MACHINES

The contractor shall at all times maintain the water dispensing machines, including all meters and special attachment, in proper mechanical working order and make all necessary repairs and replacement of parts. The contractor shall also keep the vending machines in a clean, attractive and sanitary condition to the satisfaction of the NUWCDIVNPT's FSB and the cognizant medical officer. Replacement of any damaged parts and/or machines shall be performed within five (5) working days of notification. In addition, the contractor shall perform monthly preventative maintenance on the equipment in order to keep the machines in good working order. All service calls shall be responded to within one (1) business day of notification. Upon award, the contractor shall provide a point of contact and a toll free service call number.

4.4 COLLECTION OF SALES RECEIPTS

- 4.4.1 The contractor shall be responsible for the collection of all subscription payments from water pool managers in accordance with AD 3.2. The contractor shall provide a monthly report identifying the month's deliveries and gross sales for each machine.

4.5. REFUNDS

RESERVED.

4.6 PERIOD OF PERFORMANCE AND CONTRACT EXPIRATION

- 4.6.1 The contractor shall have all machines installed and operational no later than 45 days after receipt of subscription request from the water pool manager and continue for a period of 60 months unless sooner terminated as provided herein. The contractor shall notify the water pool manager and Contracting officer when the actual installation is complete. The period of performance of this contract shall not exceed 5 years.
- 4.6.2 Upon expiration of this contract or upon termination as provided herein, the contractor's shall promptly remove contractor owned property from the NUWCDIVNPT premises. Upon failure to do so, the NUWCDIVNPT FSB may cause property to be removed at the contractor's expense.
- 4.6.3 In the event of expiration of contractor or termination, any monies due and payable to the NUWCDIVNPT FSB from the contractor as a result of this contract remain due and payable.
- 4.6.4 Upon termination or expiration of this contract, the contractor shall promptly settle its account with the NUWCDIVNPT CMWR , including payment in full of all amounts due, clean and leave the premises in as good order and condition as when received (damage due to acts of God or the US Government, and ordinary wear and tear excepted), and surrender base passes and decals.

4.7 STOCKING OF THE MACHINES

- 4.7.1 The contractor shall at all times keep the machines stocked with water. The contractor shall respond to all service calls regarding empty machines or an empty product line(s) and take corrective action within two (2) business days of notification. Upon receipt of request from a building/floor water pool coordinator in accordance with the Contractor's identified subscription process, Applicable Document 3.2, the contractor shall provide a point of contact and a toll free number.

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C-228-H002 MINIMUM INSURANCE REQUIREMENTS (NAVSEA) (JAN 2019)

(a) In accordance with the clause(s) of this contract entitled "Insurance--Work On a Government Installation" (FAR 52.228-5) and "Liability and Insurance" (DFARS 252.217-7012), as applicable, the Contractor shall procure and maintain insurance, of at least the kinds and minimum amounts set forth below:

(i) Workers' compensation and employer's liability coverage shall be at least \$100,000, except as provided in FAR 28.307-2(a), if applicable

(ii) Bodily injury liability insurance coverage shall be written on the comprehensive form of policy of at least \$500,000 per occurrence.

(iii) Automobile liability policies covering automobiles operated in the United States shall provide coverage of at least \$200,000 per person and \$500,000 per occurrence for bodily injury and \$20,000 per occurrence for property damage. The amount of liability coverage on other policies shall be commensurate with any legal requirements of the locality and sufficient to meet normal and customary claims.

(b) To be approved by the Contracting Officer, insurance certificates must include the following cancellation policy statement: Prior to cancellation or material change in coverage, the contractor shall give 30 days written notice to the Contracting Officer.

(c) Physical work cannot begin until the insurance certificate has been approved by the Contracting Officer. Failure to provide an acceptable insurance certificate will not remove the contractor's responsibility to meet the delivery requirements outlined in Section F and FAR 52.211-11, Liquidated Damages – Supplies, Services, or Research and Development, if applicable.

(End of text)

Section E - Inspection and Acceptance

INSPECTION AND ACCEPTANCE TERMS

Supplies/services will be inspected/accepted at:

CLIN 0001	INSPECT AT Destination	INSPECT BY Government	ACCEPT AT Destination	ACCEPT BY Government
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Section F - Deliveries or Performance

DELIVERY INFORMATION

CLIN	DELIVERY DATE	QUANTITY	SHIP TO ADDRESS	DODAAC / CAGE
0001	5 yrs. ADC	1	NAVAL STATION NEWPORT, N66604 RECEIVING OFFICER 47 CHANDLER STREET NEWPORT RI 02841-1716 401-832-6150 FOB: Destination	N66604

Section G - Contract Administration Data

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G-242-H001 Government Contract Administration Points-of-Contact and Responsibilities (NAVSEA) (OCT 2023)

(a) The Government reserves the right to administratively substitute any of the points of contact listed below at any time.

(b) The contracting officer is the only person authorized to change this contract or orders issued thereunder. The Contractor shall not comply with any order, direction or request of Government personnel - that would constitute a change - unless it is issued in writing and signed by the Contracting Officer or is pursuant to specific authority otherwise included as part of this contract. If, in the opinion of the contractor, an effort outside the existing scope of this contract is requested, the contractor shall promptly comply with the Notification of Changes clause of this contract.

(c) The points of contact are as follows:

(i) The Procuring Contracting Officer (PCO) is:

Name: Andrew Nagelhout

Address: NUWC Division Newport 1176 Howell Street Newport, RI 02841

Phone: (401) 832-3844

E-mail: andrew.c.naghout.civ@us.navy.mil

(ii) The Contract Specialist is:

Name: Michael Ouellette, Code 0223

Address: NUWC Division Newport 1176 Howell Street Newport, RI 02841

Phone: (401) 832- 5568;

E-mail: Michael.N.Ouellette.CIV@US.NAVY.MIL

(d) The Technical Point of Contact (TPOC) is the contracting officer's representative for technical matters when a COR is not appointed. The TPOC is responsible for technical issues of contract administration, such as providing all items of Government Furnished Information (GFI), Government Furnished Material (GFM) and Government Furnished Equipment (GFE) if specified in the contract as well as the inspection and acceptance of all contract deliverables.

The Technical Point of Contact (TPOC) is:

Name: [*]

Address: [*Street]

[*City, State, Zip]

Phone: (Area Code) xxx- [xxxx]

E-mail: [*]

(e) The Contractor's point of contact for performance under this contract is: **PLEASE PROVIDE WITH PROPOSAL**

Name: [*]

Title: [*]

Address:

[*Street]

[*City, State, Zip]

Phone: (Area Code) xxx- [xxxx]

E-mail: [*]

[*] To be completed at contract award

(End of Text)

Section H - Special Contract Requirements

SPECIAL CONTRACT REQUIREMENTS

SUBCONTRACTING AND SALE OF BUSINESS

a. This contract or any part hereof shall not be subcontracted after award without prior written approval of the Contracting Officer and the NUWCDIVNPT FSB.

b. This contract shall not be sold to a third party except upon the approval of the Contracting Officer. The Contracting Officer shall not give approval of such a sale unless the Contracting Officer is convinced that NUWCDIVNPT will in no way suffer as a result of such a sale. If there is a sale to a third party all the term of this contract shall still apply. The Government's right to not exercise any or all options shall remain fully enforceable.

Section I - Contract Clauses

ADDITIONAL CLAUSES

See Attachment 1 to this solicitation for applicable Non-appropriated Fund Contract Clauses.

Note: Within Attachment 1, all references to "NAFI" (Non-Appropriated Fund Instrumentality) are synonymous with "NUWCDIVNPT CMWR/FSB".

CLAUSES INCORPORATED BY REFERENCE

52.203-5	Covenant Against Contingent Fees	MAY 2014
52.222-3	Convict Labor	JUN 2003
52.222-4	Contract Work Hours and Safety Standards - Overtime Compensation	FEB 2026
52.222-20	Contracts for Materials, Supplies, Articles, and Equipment	FEB 2026
52.222-35	Equal Opportunity for Veterans	FEB 2026
52.222-36	Equal Opportunity for Workers with Disabilities	FEB 2026
52.222-37	Employment Reports on Veterans	FEB 2026
52.222-41	Service Contract Labor Standards	AUG 2018
52.232-11	Extras	APR 1984
52.246-1	Contractor Inspection Requirements	APR 1984
52.246-4	Inspection Of Services--Fixed Price	AUG 1996
52.246-16	Responsibility For Supplies	APR 1984
52.247-52	Clearance and Documentation Requirements-Shipments to DOD Air or Water Terminal Transshipment Points	FEB 2026

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52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/>

(End of provision)

Section J - List of Documents, Exhibits and Other Attachments

Exhibit/Attachment Table of Contents

DOCUMENT TYPE	DESCRIPTION	PAGES	DATE
Attachment 1	Non Appropriated Fund	60	19-MAY-2025

Section K - Representations, Certifications and Other Statements of Offerors

OFFEROR REPS AND CERTS**REPRESENTATIONS, CERTIFICATIONS AND ACKNOWLEDGMENTS**

Contractors that are registered with the Government's System for Award Management (SAM) may provide their DUNS number in lieu of section K.

WALSH-HEALEY PUBLIC CONTRACTS ACT REPRESENTATIONS (Applicable to supply contracts exceeding \$15,000.00)

The offeror represents as a part of this offer that the offeror { } is or { } is not a regular dealer in, or { } is or { } is not a manufacturer of, the supplies offered.

CONTINGENT FEE

(a) Offeror has has not employed any company or persons (other than a full-time bona fide employee working solely for the offeror) to solicit or secure this contract, and (b) has has not paid or agreed to pay any company or person (other than a full-time bona fide employee working solely for the offeror) any fee, commission, percentage, or brokerage fee contingent upon or resulting from the award of this contract; and agrees to furnish information relating to (a) and (b), as requested by the contracting officer. (Interpretation of the representation, including the term "bona fide employee," see subpart 3.4 of the Federal Acquisition Regulation.)

TYPE OF BUSINESS ORGANIZATION

Offeror operates as an individual a partnership a nonprofit organization a corporation, incorporated under the laws of the State of .

EQUAL OPPORTUNITY (EO)

(a) Offeror has has not participated in a previous contract or subcontract subject either to the EO clause herein or the clause originally contained in section 310 of Executive Order No. 10925, or the clause contained in section 201 of Executive Order No. 11114; offeror has has not filed all required compliance reports; and that representation indicating submission of required compliance reports, signed by proposed subcontractors, will be obtained prior to subcontract awards.

(b) Offeror represents that (1) it has developed and has on file has not developed and does not have on file, at each establishment affirmative action programs as required by the rules and regulations of the Secretary of Labor (41 CFR 60-1 and 60-2) or (2) it has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

CERTIFICATION OF INDEPENDENT PRICE DETERMINATION (Applicable to contracts over \$100,000.00)

(a) By submission of this offer, the offeror certifies, and in the case of a joint offer, each party thereto certifies as to its own organization, that in connection with this procurement:

(1) The prices in this offer have been arrived at independently, without consultation, communication, or agreement, for the purpose of restricting competition, as to any matter relating to such prices with any other offeror or with any competitor;

(2) Unless otherwise required by law, the prices which have been quoted in this offer have not been knowingly disclosed by the offeror and will not knowingly be disclosed by the offeror prior to opening in the case of an advertised procurement or prior to award in the case of a negotiated procurement, directly or indirectly to any other offeror or to any competitor; and

(3) No attempt has been made or will be made by the offeror to induce any other person or firm to submit or not to submit an offer for the purpose of restricting competition.

(b) Each signature on this offer certifies that the signatory:

(1) Is the person in the offeror's organization responsible within that organization for the decision as to the prices being offered herein and that the signatory has not participated, and will not participate, in any action contrary to (a)(1) through (a)(3) above; or

(2) (i) Is not the person in the offeror's organization responsible within that organization for the decision as to the prices being offered herein but has been authorized in writing to act as agent for the persons responsible for such decision in

certifying that such persons have not participated and will not participate, in any action contrary to (a)(1) through (a)(3) above, and as their agent does hereby so certify; and (ii) has not participated, and will not participate, in any action contrary to (a)(1) through (a)(3) above.

CERTIFICATION OF NONSEGREGATED FACILITIES (Applicable to contracts and subcontracts exceeding \$10,000.00 which are not exempt from the provisions of the EO clause)

(a) By submission of this offer, offeror/subcontractor certifies that it does not and will not maintain or provide for its employees any segregated facilities at any of its establishments, and that it does not and will not permit its employees to perform their services at any location under its control where segregated facilities are maintained. Offeror/subcontractor agrees that a breach of this certification is a violation of the EO clause in this contract. As used in this certification, the term “segregated facilities” means any waiting rooms, work areas, rest and wash rooms, restaurants and other eating areas, time clocks, locker rooms and other storage or dressing areas, parking lots, drinking fountains, recreation or entertainment areas, transportation, and housing facilities provided for employees which are segregated by explicit directive or are in fact segregated on the basis of race, color, religion, or national origin, because of habit, local custom, or otherwise. Offeror further agrees that (except where it has obtained identical certifications from proposed subcontractors for specific time periods) it will (1) obtain identical certifications from proposed subcontractors prior to the award of subcontracts exceeding \$10,000.00 which are not exempt from the provisions of the EO clause; (2) retain such certifications in its files; and (3) forward the following notice to such proposed subcontractors (except where the proposed subcontractors have submitted identical certifications for specific time periods)

Notice to prospective subcontractors of requirement for certifications of nonsegregated facilities.

(b) A Certification of Nonsegregated Facilities must be submitted prior to the award of a subcontract exceeding \$10,000.00 which is not exempt from the provisions of the EO clause.

(c) The certification may be submitted either for each subcontract or for all subcontracts during a period (i.e., quarterly, semiannually, or annually). NOTE: The penalty for making false offers is prescribed in 18 U.S.C. 1001.

(d) ACKNOWLEDGMENT OF AMENDMENTS

Amendment No. Date

The offeror acknowledges _____
 receipt of amendments to _____
 the solicitation for offers _____
 and related documents _____
 numbered and dated as _____

follows:

NOTE: Offers must set forth accurate and complete information as required by this Solicitation (including attachments). The penalty for making false statements in offers is prescribed in 18 U.S.C. 100

CLAUSES INCORPORATED BY FULL TEXT

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (AUG 2020)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it “does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument” in the provision at 52.204-26, Covered Telecommunications Equipment or Services—Representation, or in paragraph (v) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Items.

(a) Definitions. As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition. (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(d) Representations. The Offeror represents that—

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds “will” in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—
It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds “does” in paragraph (d)(2) of this section.

(e) Disclosures. (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded “will” in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded “does” in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-25 PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (AUG 2020)

(a) Definitions. As used in this clause--

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means--

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means--

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled--

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connection of a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Reasonable inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of the producer or provider of covered telecommunications equipment or services used by the entity that excludes the need to include an internal or third-party audit.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

(b) Prohibition. (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. The Contractor is prohibited from providing to the Government any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract, or extending or renewing a contract, with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract.

(c) Exceptions. This clause does not prohibit contractors from providing--

(1) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(2) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(d) Reporting requirement.

(1) In the event the Contractor identifies covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, or the Contractor is notified of such by a subcontractor at any tier or by any other source, the Contractor shall report the information in paragraph (d)(2) of this clause to the Contracting Officer, unless elsewhere in this contract are established procedures for reporting the information; in the case of the Department of Defense, the Contractor shall report to the website at <https://dibnet.dod.mil>. For indefinite delivery contracts, the Contractor shall report to the Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report provided at <https://dibnet.dod.mil>.

(2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this clause:

(i) Within one business day from the date of such identification or notification: The contract number; the order number(s), if applicable; supplier name; supplier unique entity identifier (if known); supplier Commercial and Government Entity (CAGE) code (if known); brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this clause: Any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of covered telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

(e) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (b)(2), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial items.

(End of clause)

Section L - Instructions, Conditions and Notices to Bidders

INSTRUCTIONS FOR SUBMISSION**1.0 GENERAL INFORMATION.**

Offerors must respond to all requirements of the solicitation document. The Government will evaluate each Offeror's proposal based on the solicitation. Failure to comply with the terms and conditions of this solicitation may result in the Offeror being removed from consideration for award.

The solicitation N6660426Q0318 will be made available only through the internet at: <https://sam.gov/> Offerors are hereby notified that, from time to time, the Government may post additional information to the web site relating to this solicitation (e.g., responses to questions, amendments, etc.). It is the Offeror's responsibility to check the web site for any such information.

All questions concerning this procurement, either technical or contractual, must be submitted via email. No direct discussion between the Technical Point of Contact and the Offeror shall occur. All questions should be received in writing within twenty (20) calendar days after release of the RFP to allow the Navy adequate time to prepare and issue responses to all Offerors prior to due date and time for proposals. Only questions transmitted electronically will receive a response.

All questions and Proposals shall be submitted via email to both of the following points of contact: Contract

Negotiator: Michael Ouellette

Contact Information: michael.n.ouellette.civ@us.navy.mil

Contracting Officer: Andrew Nagelhout

Contact Information: andrew.c.nagelhout.civ@us.navy.mil

2.0 PROPOSAL FORMAT.

- (a) Each Offeror shall submit its entire proposal electronically to the points of contact identified above. The proposal shall be submitted in the English language and using U.S. Currency. All content in the proposal shall be prepared in no smaller than 10-point font, single-spaced with no less than a one-inch margin on all sides. In the event that photo reduction is used for tables, charts, and drawings, their presentation must be clear and legible. No hyperlinks are allowed. Adobe .pdf or Microsoft Office compatible files are required. Adobe format documents shall be word searchable.

Offerors are required to submit their proposals in separate parts as follows:

Volume	Volume Title	Maximum Number of Pages
I	Cover Letter	No Page Limit
II	FACTOR 1 – Percentage of Gross Sales	No Page Limit
III	Contractor subscription process*	No Page Limit
IV	FACTOR 2 - Past Performance	Three (3) pages per reference, excluding CPARS and PPQs

*Will be incorporated into the contract as AD 3.2 at the time of award.

- (1) **Cover letter.** The Offeror shall provide a cover letter with the below information. There is no page limit for this section of the proposal:
- Solicitation number
 - The name, address, email address, telephone numbers, Cage Code, DUNS Number, and Identification Number (TIN) of the Offeror
 - A statement specifying the Offeror accepts all the terms, conditions, and provisions included in the solicitation
 - A statement that the proposal is valid through 90 calendar days from the dates for receipt of proposals
 - Names, titles, telephone numbers, and e-mail addresses of persons authorized to respond to inquiries or negotiate on

the Offeror's behalf

- vi. Name, title, and signature of a person authorized to sign the proposal
- vii. Identify all enclosures being transmitted as part of its proposal

(2) Percentage of Gross Sales (Factor 1).

The offeror shall provide a signed solicitation document indicating the remittance percentage of Gross sales.

(3) Contractor subscription process

The contractor shall provide its subscription process including:

- a. How subscriptions may be signed up for and funded by water pool managers
- b. Any associated terms and conditions (NOTE: In the event of a conflict between the Government terms and conditions and that of an offeror's subscription process, the Government's terms and conditions will Govern.)

(4) Past Performance (Factor 2)

If a completed Contractor Performance Assessment Reporting System (CPARS) is available, it shall be submitted with the proposal. Past performance references shall reflect experience performed within five (5) years of the issue date of this solicitation. If there is not a completed CPARS evaluation then the Offeror shall provide Points of Contact (POC) where the offeror has operated beverage vending services any time over the past three years, including the name and contact information of the POC.

The Government may review any other sources of information for evaluating past performance. Sources may include, but are not limited to, CPARS, FAPIIS, inquiries of project owner representative(s), and any other known sources not provided by the Offeror.

While the Government may elect to consider data from other sources, the burden of providing detailed, current, accurate and complete past performance information rests with the Offeror.

In order to assist the Government in gathering past performance information, the contractor shall provide the following information regarding its past performance:

- 1. Estimated gross sales for the past three (3) years.
- 2. Any and all licenses issued by any Government entity regarding the operation of your business, please include your State Tax ID number.
- 3. CPARS / Points of Contact.

Section M - Evaluation Factors for Award

EVALUATION FACTORS**1.0 BASIS FOR AWARD****1.1 General Information**

- (a) The Government intends to make a single award as a result of this Solicitation. Award will be made to the responsible Offeror whose proposal contains the combination of those criteria offering the best overall value to the Government. Offers will be evaluated on two evaluation factors. Total remittance percentage from the vendor to NUWC DIVNPT, and Past Performance.
- (b) The Government intends to award a contract without discussions (except for clarifications as described in FAR 15.306(a)), as permitted by FAR 15.305(a) (3) and FAR 52.215-1. However, the Government reserves the right to conduct discussions to permit Offerors to revise their proposals.

1.2 Factors

The following table establishes all significant factors that will be considered in awarding the Contract:

FACTORS	SUBFACTORS
1. Percentage of Gross Sales	None
2. Past Performance	None

2.0 Percentage of Gross Sales (FACTOR 1)

The Government will evaluate the proposals in accordance with FAR 15.404-1(b) procedures.

3.0 NON-PRICE FACTORS

The Government will evaluate offers and assign one of the adjectival ratings indicated in Section 4.0 for each of the following non-price factors:

3.1 Past Performance (Factor 2)

The past performance evaluation assesses the Offeror's ability to supply products and services that meet users' needs, based on a demonstrated record of performance. The Government may consider past performance information contained in the Supplier Performance Risk System (SPRS) and the Federal Awardee Performance and Integrity Information System (FAPIIS). The Government may use other information such as the Contractor Performance Assessment Reporting System (CPARS) or other data available from Government sources to evaluate an Offeror's past performance. The Government may also contact all or some of each Offeror's customers to obtain past performance information. The Government reserves the right to limit or expand the number of references it decides to contact, and contact references other than those provided by the Offeror.

4.0 ADJECTIVAL RATINGS

- (a) The Government will perform an evaluation of the non-price evaluation factors based on the Offeror's proposal. Price will not be assigned an adjectival rating.
- (b) Past Performance Adjectival Rating

Past Performance Ratings	
Rating	Description
Acceptable	Based on the Offeror's recent/relevant performance record, the Government has a reasonable expectation that the Offeror will successfully perform the required effort, or the Offeror's performance record is unknown.

Unacceptable	Based on the Offeror's performance record, the Government does not have a reasonable expectation that the Offeror will be able to successfully perform the required effort.
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In the case of an Offeror without a record of relevant past performance or for whom information on past performance is not available or so sparse that no meaningful past performance rating can be reasonably assigned, the offeror may not be evaluated favorably or unfavorably on past performance. Therefore, the Offeror shall be determined to have unknown past performance. In the context of acceptability/unacceptability "unknown" shall be considered acceptable.